

Court No. - 36

Case :- WRIT - C No. - 37652 of 2013

Petitioner :- Ashwani Kumar

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Randhir Singh

Counsel for Respondent :- C.S.C.,Nripendra Singh

Hon'ble Vineet Saran,J.

Hon'ble B. Amit Sthalekar,J.

Heard learned counsel for the petitioner as well as learned Standing Counsel for respondent no.1 and Sri Nripendra Misra, learned counsel appearing for the contesting respondents no.2 and 3. In view of the nature of the order which is being passed, this writ petition is disposed of without issuing notices to the private respondents no. 4 and 5. In case the said respondents feel so aggrieved, they may file an application for recall/modification/variation of this order.

The case of the petitioner is that the respondents no. 4 and 5 are trying to get an electricity connection from Urban Distribution Division of the respondent-Corporation claiming that they are tenant of the property which belongs to the petitioner. It is contended by the learned counsel for the petitioner that without no objection being granted by the landlord, the electricity connection cannot be granted to the tenant.

Sri Nripendra Misra, learned counsel for the contesting respondent-Corporation has stated that the electricity connection in a tenanted property can only be granted after a no objection is obtained from the landlord as is provided under the Electricity Supply Code. With regard to his grievances made in this writ petition the petitioner has already filed his objection before the Executive Engineer, Vidyut Nagariya Vitran Khand (First), Moradabad, respondent no.2, on 28.6.2013.

In our view, no useful purpose will be served by calling for a counter affidavit and keeping this writ petition pending.

In the facts and circumstances of this case, we dispose of this writ petition with the direction that the respondents no. 2 and 3 shall not pass any order granting electricity connection in favour of respondents no.4 and 5 without considering the objection of the petitioner which has been filed on 28.6.2013 (Annexure-3 to the writ petition). It is further provided that the petitioner shall file a certified copy of this order before the respondent no.2 within ten days from today along with a photostat copy of his objection dated 28.6.2013.

With the aforesaid observation/direction, this writ petition is disposed of.

Order Date :- 16.7.2013

dps

(B.Amit Sthalekar, J) (Vineet Saran, J)